

U.P. State Electricity Board vs Shri Shiv Mohan Singh And Anr on 1 October, 2004

Equivalent citations: AIR 2004 SUPREME COURT 5009, 2004 AIR SCW 5623, 2004 (8) SCC 402

Author: A.K. Mathur

Bench: N.Santosh Hegde, A.K.Mathur

CASE NO.:

Appeal (civil) 2429 of 2003

PETITIONER:

U.P. State Electricity Board

RESPONDENT:

Shri Shiv Mohan Singh and Anr.

DATE OF JUDGMENT: 01/10/2004

BENCH:

N.Santosh Hegde & A.K.Mathur

JUDGMENT:

J U D G M E N T With (C.A. No. 8386/2003, 7005/03, 7006/03, 8383/03, 8385/03, 8384/03, 9231/03, 9234/03, 9232/03, 9233/03, 9679/03, 9680/03, 9681/03, 9683/03, 122/04, 14/04, 1965/04 & 2193/04)

A.K. MATHUR, J.

In all these appeals common question of law is involved, therefore, they are disposed of by common order. The main question involved in these appeals is what is the scope of Apprentices Act, 1961 vis a vis the U.P. Industrial Disputes Act, 1947, Industrial Disputes Act, 1947 and the Indian Boilers Act, 1923.

The Apprentices Act, 1961 was promulgated primarily for the purpose of recruiting the apprentices. The idea behind was strong industrial base across the country. For the industrial growth it was necessary to have trained man power and for that purpose the apprentices were recruited.

The Introduction, Objects and Reasons for enacting this Act reads as under:-

INTRODUCTION

After India gained independence, a wave to have its own strong industrial base swept the country. Backed by Government policies, industrial growth had a quantum leap. With the industrial growth a need was felt to have trained man-power and for that steps were taken to arrange for training of apprentices in the industry. After some years it necessitated that the training being imparted to the apprentices should be regulated by legislation. Accordingly the Apprentices Bill, 1961 was introduced in a Parliament to provide for the regulation and control of training of apprentices.

STATEMENT OF OBJECTS AND REASONS

The question of undertaking legislation for regulating the training of apprentices in industry has been under the consideration of the Government for a long time. Expert committees which went into the question have recommended such legislation. Although certain establishment in the public and private sectors have been carrying out programmes of training of skilled workers on a systematic basis, industry in general has not as yet fully organized such programmes.

Section 2 deals with the definition. Section 2(aa) defines "apprentice" which means a person who is undergoing apprenticeship training in pursuance of a contract of apprenticeship.

Section 2(aaa) deals with "apprenticeship training" which means a course of training in any industry or establishment undergone in pursuance of a contract of apprenticeship.

Section 2(b) deals with "Apprenticeship Adviser" which means the Central Apprenticeship Adviser appointed under sub-section (1) of Section 26 or the State Apprenticeship Adviser appointed under sub-section (2) of that section.

Section 2(d) defines "Appropriate Government".